

Rajasthan Raj Bhawan (Sic Bhawan) Right to Information Rules, 2006

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State of Rajasthan - Act

Rajasthan Raj Bhawan (Sic Bhawan) Right to Information Rules, 2006

RAJASTHAN

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Rajasthan Raj Bhawan (Sic Bhawan) Right to Information Rules, 2006

Rule RAJASTHAN-RAJ-BHAWAN-SIC-BHAWAN-RIGHT-TO-INFORMATION-RULES-2006 of 2006

Published on 28 December 2006

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Rajasthan Raj Bhawan (Sic Bhawan) Right to Information Rules, 2006

Published vide Notification No. G.S.R. 64, dated 28.12.2006

Last Updated 21st May, 2019

G.S.R. 64. - In exercise of the powers conferred by Section 28 of the Right to information Act, 2005 (Central Act, No. 22 of 2005). The Governor of Rajasthan hereby makes the following rules, namely:-

1.

Short title and commencement.

- 111 These rules may be called the Rajasthan Raj Bhawan (Sic Bhawan) Right to Information Rules, 2006.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires :-

(a)

"Act" means the Right to Information Act, 2005.

(b)

"Appellate Authority" means the Principal Secretary/Secretary to Governor, Rajasthan.

(c)

"Section" means Section of the Act.

(2)

The words and expressions used herein, but not defined shall have the meaning assigned to them in the Act.

3.

Application Fee.

- A request for obtaining information under sub-Section (1) of Section 6 shall be accompanied by an application fee of rupees ten by way of cash against proper receipt or by demand draft or bankers cheque or Indian Postal Order payable to the Public Authority; Raj Bhawan, Jaipur.

4.

Fee for providing information.

(1)

For providing information under sub-Section (1) of Section 7 the fee shall be charged by way of cash against proper receipt or by demand draft or bankers cheque or Indian Postal Order payable to the Public Authority, Raj Bhawan, Jaipur at the following rates:-

(a)

rupees two for each page (in A-4 or A-3 size paper) created or copied;

(b)

actual charge or cost price of a copy in large size paper.

(c)

actual cost price for samples or models; and

(d)

for inspection of records, no fee for the first hour and a fee of rupees five for each fifteen minutes or fraction thereof thereafter.

(2)

For providing the information under sub-Section (5) of Section 7, the fee shall be charged by way of cash against proper receipt or by demand draft or bankers cheque or Indian Postal Order Payable to the Public Authority, Raj Bhawan, Jaipur at the following rates:-

(a)

for information provided in diskette or floppy rupees fifty per diskette or floppy; and

(b)

for information provided in printed form at the price fixed for such publication or rupees two per page of photocopy for extracts from the publication.

5.

Contents of appeal.

- An appeal to the Principal Secretary/Secretary to the Governor shall contain the following information, namely: -

(i)

name and address of the appellant;

(ii)

name and address of the Public Information Officer, Raj Bhawan, Jaipur.

(iii)

particulars of the order against which the appeal is made including number and date;

(iv)

brief facts leading to the appeal;

- (v)
grounds for the prayer or relief;
- (vi)
provision of the Act or the rules;
- (vii)
prayer or relief sought;
- (viii)
verification by the appellant; and
- (ix)
any other information which the appellate Authority may deem necessary for deciding the appeal.

6.

Documents to accompany appeal.

- Every appeal made to the Appellate Authority shall be accompanied by the following documents:-

- (i)
attested true copy of the order against which the appeal is being preferred;
- (ii)
copies of documents relied upon by the appellant and referred to in the appeal; and
- (iii)
an index of the documents referred to in the appeal.

7.

Procedure in deciding appeal.

- In deciding the appeal the Appellate Authority shall:-

- (i)
consider oral and written evidence on oath or on affidavit from concerned or interested person;
- (ii)
peruse or inspect documents, public record or copies thereof;
- (iii)
inquire through authorized officer, further details of facts;
- (iv)
hear Public Information Officer, Assistant Public Information Officer, Raj Bhawan or such Senior Officer, who decided the request for obtaining information as the case may be;
- (v)
hear third party; and
- (vi)
receive evidence on affidavit from Public Information Officer, Assistant Public Information Officer, Raj Bhawan who decided the request for obtaining information or third party or any concerned officer of Raj Bhawan.

8.

Service of notice by Appellate Authority.

- Notice to be issued by the Appellate Authority may be served in any of the following modes, namely:-

- (i)
service by the party itself;
- (ii)
by hand delivery (dasti) through process server;
- (iii)
by registered post with acknowledgment due.

9.

Signing of order.

- Order of the Appellate Authority pronounced in open proceedings shall be in writing under signature and seal of the Appellate Authority.

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